

H Vijaya Kumar vs Nil on 2 December, 2011

Bench: N.Kumar, H.S.Kempanna

IN THE HIGH COURT OF KARNATAKA AT BANGALOR®:

DATED THIS THE 028P DAY OF DECEMBER, 201 1 ~ n0,

PRESENT

THE HON'BLE MR. JUSTICE N. KUMAR -

AND.

THE HON'BLE MR. JUSTICE, H. S. KEMPANNA

M.F.A.NO. 7523, 2008 | (im rom

BETWEEN

1. HVIJAYA KUMAR. |
S/O LATE V¥. HANUMANTHA RAG
AGED ABOUT.35 YEARS,
R/AT NOW24,
3RD CROSS: 8.C. ROAD,
R.K.PURAM, BANGALORE.

B.S JAYANTHL-
W/O'H.VIJAYA KUMAR,
_ AGED ABOUT 34 YEARS,
_ -R/AT'NO.24
. 38RD CROSS; S.C.ROAD,
~ PUK. PURAM, BANGALORE. _... APPELLANTS

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_(pyé SRI. DIWAKAR, ADV...,)

- AND".

-NIL- ... RESPONDENT

; MFA FILED U/S. 19(1) OF FC ACT AGAINST THE
JUDGEMENT AND DECREE DATED: 11.1. 2008
PASSED IN M. C.NO. 2035/2007 ON THE FILE OF THE

Fe OSCE

. the law.

1 ADDL. PRL. JUDGE, FAMILY COURT, BANGALOR®,
DISMISSING THE PETITION FILED U/S. 13-B. OF.

HINDU MARRIAGE ACT FOR DISSOLVING.. THE.

MARRIAGE

THIS APPEAL COMING ON FOR ORDERS. THIS ©
DAY, N. KUMAR J., DELIVERED THE FOLLOWING:

JUDGMENT

No representation on. behalf of . the appellant.

2. Petition - filed under "Section 13-B of the Hindu Marriage Act, before: Family Court is dismissed on the ground that both the parties on the date of the petition 'were residing in the same premises. In other words, they were not Tesiding separately, which is the 7 frst condition, which-is not fulfilled for maintaining the 'petition. : t hevefore, we do not see any error in the order passed by: the Court below. Accordingly, the appeal is eo dismissed, however, reserving liberty to the petitioner to ~ approach the Court after satisfying the requirements of Le , wn Cb

3. In that view of dismissal of the appeal, the iA 1/08 filed for condonation of delay is also rejected ~Sdfe "jobs "JUDGE SA Ns